

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

DOMINICK MURPHY,

Respondent

) Case Number: FCS-13-349074

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME), REUNIFICATION THERAPY, TIER 2 MEDIATION

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Respondent Dominick Eugene Murphy (Father) and Other Parent Moneesha Sealey Evans (Mother). They share one minor child: Lyriq Genesis Murphy (DOB: 11/16/12).
- 2) On May 8, 2026, Father filed an emergency Request for Order seeking a modification of the existing child custody and visitation orders, reunification therapy, and Tier II mediation. In particular, Father is seeking sole legal and sole physical custody of the minor child and no visitation to Mother. Father alleges that Mother has physically abused the minor child and that Child Protective Services was involved. The Court granted an order shortening time for service and hearing and set the matter for Readiness on May 18, 2026.
- 3) On May 18, 2026, the Court referred the matter to FCS Mediation to occur on June 16, 2026 and set a return hearing for June 25, 2026.

- 1 4) On June 5, 2026, Mother filed a Responsive Declaration to Father's Request for Order, which has
2 been read and considered by the Court. Mother requests sole legal and sole physical custody of
3 the minor child with parenting time to Father every other weekend and during school breaks.
4 Mother asks the Court to deny Father's request for a Tier II interview of the minor child and for
5 reunification therapy.
- 6 5) On June 25, 2026, the Court denied all of Father's requests, with the exception of his request for
7 a Tier II interview of the minor child and set a further hearing for August 6, 2026.
- 8 6) On July 24, 2026, Father filed an additional Declaration, which has been read and considered by
9 the Court.
- 10 7) On July 28, 2026, the Court received and reviewed the Tier II report performed by FCS
11 Mediation.

12 **B. Findings and Order**

- 13 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
14 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
15 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
16 child is the United States.
- 17 2) **The parties are ordered to appear.**
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